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United States Court of Appeals for the Fourth Circuit

Piedmont Booksellers Guild v. City of Norvale

No. SYN-CA4-26-CV-4103-CF-NEVER-OCCURRED

Guild Response to Impracticability Motion

Filed February 4, 2026

The Piedmont Booksellers Guild opposes the City of Norvale's motion to stay the January 23 preliminary injunction. The Guild does not dispute the January 30 recusal, the incomplete reassignment reported on February 2, or the substance of the joint call with the district clerk. Those facts permit this Court to consider the motion initially under Rule 8. They do not satisfy the separate burden for discretionary relief under *Nken v. Holder*, 556 U.S. 418, 433–35 (2009).

The staffing deadline on which Norvale relied passed yesterday. The City elected to reserve the identified employees subject to cancellation, as the attached February 3 notice confirms. No adverse event occurred, and the February 14 fair remains scheduled. The Court can therefore assess the motion without mistaking a now-preserved staffing option for proof that Ordinance N-2025-18 must govern.

The City is unlikely to reverse the core preliminary finding. Payment is not an operational condition. The record permits Norvale to obtain schedules, formats, equipment needs, expected attendance, site plans, loading windows, emergency contacts, and material updates without forcing the Guild to finalize paid identities and topics forty-five days early or pay another fee for each presenter.

The injunction expressly preserves neutral authority over actual site and safety conditions. A stay would restore the disputed burdens, not fill a gap in legitimate municipal power. The Guild asks the Court to deny relief while the appeal proceeds on a complete record.

The Rule 8 Gateway Does Not Decide the Merits

The City's sworn account is sufficiently specific to distinguish this motion from one relying on urgency alone. A recusal order, an unfinished reassignment, three clerk contacts, an attempted duty-judge referral, and a decision point preceding the represented date for judicial action provide a concrete explanation for initial appellate presentation. The Guild's acknowledgment is limited to that procedural question.

Impracticability does not create a presumption in favor of a stay. Rule 8 identifies where a motion may be presented; *Nken* determines whether suspension is justified. Nor does the temporary unavailability of the issuing judge enlarge appellate jurisdiction beyond review of the January 23 injunction under 28 U.S.C. § 1292(a)(1). The unresolved complaint and any permanent remedy remain below.

The City's February 3 staffing choice further separates access from entitlement. Norvale reserved the workers with a right to cancel seventy-two hours before the fair and without a nonrefundable payment. The option eliminates the claimed loss of personnel while leaving the City free to use ordinary staff if later information shows no need. It does not establish that the paid-speaker ordinance is necessary.

The panel should state expressly that it accepts the threshold showing but denies or grants relief only after an independent evaluation of all four factors. That distinction matters because a procedural exception designed for genuine unavailability cannot become an abbreviated path to suspension whenever an event date approaches. The City still must show probable appellate success and irreparable injury caused by the injunction itself.

Likelihood of Success Remains Weak

The district court did not require Norvale to adopt the least restrictive means. It asked whether the record connected the particular burdens imposed—paid status, identity and topic forty-five days ahead, amendment uncertainty, and a per-speaker assessment—to the interests asserted. The evidence showed that schedule, format, audience, equipment, layout, traffic, and access directly describe those interests, while compensation does not.

A paid novelist and an unpaid novelist can attract the same audience. A compensated author substituted into the same twenty-minute slot may change no physical fact. An unpaid celebrity may draw a much larger gathering yet fall outside the added regime. Those examples do not demand mathematical precision. They expose why the selected trigger burdens a substantial category of protected programming without reliably identifying operational need.

The legislative history calls compensation an administrable proxy for organizer control. Administrative ease is relevant, but the City already knows whether the organizer schedules a presentation because its form asks for the presentation's time and format. It can define planned audience programs without charging only those speakers who receive modest honoraria. The stipulated alternatives demonstrate feasible directions while leaving policy selection to Norvale.

Nothing in the pilot history fills the evidentiary gap. Two approvals with site conditions show that staff did not discriminate by viewpoint. They do not connect the \$45 increment to added work, test a late substitution, or explain why the same logistical information cannot be collected through neutral rules. On this limited record, the district court reasonably found likely overbreadth in the means chosen.

Protected Planning and Economic Injury

The Guild's injury begins before any formal denial. Organizers invite authors, promise modest honoraria, arrange travel, order books, advertise programs, and recruit sellers around a changing publication calendar. A forty-five-day identity commitment makes a late regional writer harder to add even when the time, layout, equipment, and audience estimate remain constant. Uncertain review encourages the Guild to omit an invitation rather than risk advertising a program it cannot hold.

The charge compounds that pressure. A fair with six paid authors costs \$510 under the schedule, and applying the same roster across six dates would total \$3,060 before honoraria, insurance, tents, and transportation. Small booksellers contribute dues and table amounts from narrow margins. The City may characterize the payment as administrative, but money collected as a condition of protected programming affects which speakers and sellers the nonprofit can support.

These injuries are not repaired after appeal. A February appearance lost to delay is not interchangeable with an August event; publication dates, author travel, and audience expectations differ. Damages would not supply the missed conversation or restore the Guild's planning choices. First Amendment burdens imposed during the interim therefore deserve particular weight.

The City's proposed promises do not eliminate the injury. A three-business-day target is not part of the ordinance, and “materially unchanged” remains undefined. The City still proposes to require paid identity and topic and, under its full request, collect the challenged assessment. The district court's existing protection gives the clearer and less burdensome temporary rule.

Neutral Safety Authority Remains Available

The injunction does not prevent Norvale from reserving the park, limiting capacity, protecting the service route, coordinating traffic and loading, arranging sanitation, resolving competing uses, or responding to a material change. It expressly preserves those powers. The Guild will continue providing its event footprint, presentation schedule, expected attendance, equipment, vendor count, loading window, and emergency contact, and it will report a change affecting those facts.

That information addresses every condition described in the City's declarations. Staff can compare adjacent reservations, decide whether chairs obstruct a path, relocate a signing table, designate a loading period, place a volunteer at the fountain route, and request an attendance adjustment. Nothing about the injunction requires employees to ignore a real hazard or wait for an incident.

Norvale's asserted administrative ambiguity is overstated. The operative order restrains the named paid-speaker ordinance while listing the neutral subjects left intact. If a question concerns expected crowd, equipment, time, location, traffic, or access, the City may ask it. If it demands a paid author's identity or literary topic merely because an honorarium is offered, or collects the extra assessment, the injunction prevents it. The City can request clarification if an unusual case arises.

The event history supports continuity. Guild volunteers and City staff previously managed ordinary congestion, unloading, and two minor medical responses without violence, arrest, closure, or property damage. That experience does not eliminate municipal responsibility. It demonstrates that direct coordination, which the order preserves, is capable of protecting Cedar Commons while the merits are reviewed.

No Irreparable Municipal Injury

The staffing declaration establishes an administrative preference, not harm caused by the injunction. Norvale may reserve the two supplemental employees, and its February 3 notice does so without a nonrefundable charge. More fundamentally, the injunction does not prohibit staffing, transit coordination, site comparison, or emergency planning. It removes only the challenged paid-speaker conditions from the interim process.

The City concedes that foregone fees are not its principal claim. Any properly recoverable administrative amount is monetary and can be evaluated on the merits. The City's remaining concern—that employees may treat similar questions differently—can be managed by written guidance tracking the categories preserved in the order. Ordinary implementation work does not constitute the kind of certain, unrecoverable injury required for a stay.

No evidence predicts that the February fair will overwhelm the park. The Guild's estimated attendance, footprint, vendor range, schedule, and access plan are available. Past fairs were peaceful. A listener transition briefly narrowed a path, a van caused a short loading delay, and minor medical calls occurred, but routine directions addressed each circumstance. The City retains every power needed to respond if comparable conditions recur.

Norvale also cannot manufacture irreparable harm from its preference to use one consolidated form. The Constitution may require an administrator to separate permissible logistical questions from burdens insufficiently tied to need. The district court made that preliminary division. The inconvenience of following it does not outweigh the Guild's loss of expressive choices if the challenged scheme returns during the appeal.

Equities and the Public Interest

The balance favors leaving the injunction in place. The Guild faces immediate decisions about invitations, publicity, honoraria, and seller participation. Norvale faces the ordinary task of coordinating a known event using direct operational information it already receives. If the City ultimately prevails, it may resume lawful administration for later events. If a stay suppresses a February program, no final decision can reconstruct that gathering.

The public interest is not divided between speech and safety here. Free readings, discussion, and questions enrich a public park. Clear routes, transit access, sanitation, and predictable loading keep that park usable for everyone. The existing order protects both by restraining the payment-linked burdens and preserving concrete safety rules. The Guild accepts those rules and will cooperate with documented site conditions.

An administrative stay also is unnecessary. The City has preserved its staffing option, the merits record is being assembled, and the fair is ten days away. Short suspension could consume a meaningful portion of the Guild's remaining publicity and confirmation period while providing little additional safety value. Continuity is the sounder equitable course.

Conclusion and Service

The documented reassignment interval makes initial appellate presentation cognizable, but the stay factors remain unsatisfied. Any clarification should preserve the restraint on payment-linked identities, topics, deadlines, and charges while confirming the City's authority to collect direct logistical facts and address material operational changes.

The attached February 3 staffing notice is offered to complete the emergency record. It states that the City reserved the identified employees subject to cancellation and made no nonrefundable payment. The Guild does not challenge the authenticity of the recusal order, clerk notice, call memoranda, or City declarations. It disputes the legal and equitable significance Norvale assigns to them.

Counsel conferred with City counsel before filing. Electronic service was completed on February 4, 2026. The Guild will continue supplying direct logistical information and complying with lawful, documented safety measures for the February fair. Respectfully submitted by counsel for the Piedmont Booksellers Guild.